

HOUSE BILL 46

By McCalmon

AN ACT to amend Tennessee Code Annotated, Title 9 and
Title 37, relative to child advocacy centers.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 9-4-213, is amended by adding the following new subdivisions:

(e) The department of children's services, or another department administering state funds specially appropriated for child advocacy centers, shall:

(1) Ensure that a reimbursement payment owed to a child advocacy center is paid within thirty (30) days of the date a request for reimbursement from the child advocacy center; and

(2) For any reimbursement that is not completed within the thirty (30) days required by subdivision (e)(1), pay to the child advocacy center an additional amount equal to ten percent (10%) of the total reimbursement amount owed as a late payment fee. The ten-percent payment must be paid from the applicable department's budget without additional appropriation.

(f) On or before January 15, 2026, and no later than January 15 of each year thereafter, the department of children's services shall submit to the clerk of the senate and the clerk of the house of representatives a report on the timeliness of reimbursements to child advocacy centers in this state during the previous calendar year. The report must include, at a minimum, data on the amount of reimbursements to child advocacy centers that failed to meet the thirty-day deadline required by subdivision

(e)(1), expressed as both a raw number and a percentage of total reimbursements, and the amount of late payment fees incurred pursuant to subdivision (e)(2).

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.